

former President. Title I, however, breaches the nonmandatory tradition that has long been a vital incident of separation of powers.

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The statute, therefore, violates separation-of-powers principles because it exercises a coercive influence by another branch over the Presidency. The legislation is also invalid on another ground pertaining to separation of powers; it is an attempt by Congress to exercise powers vested exclusively in the President—the power to control files, records, and papers of the office, which are comparable to the internal workpapers of Members of the House and Senate.

The general principle as to this aspect of separation of powers was stated in *Kilbourn v. Thompson*:

“[E]ach [branch] shall by the law of its creation be limited to the exercise of the powers appropriate to its own department and no other.

“[A]s a general rule . . . the powers confided by the Constitution to one of these departments cannot be exercised by another.” 103 U. S., at 191.

Madison also expressed this:

“For this reason that Convention which passed the ordinance of government, laid its foundation on this basis, that the legislative, executive and judiciary departments should be separate and distinct, so that no person should exercise the powers of more than one of them at the same time.” The Federalist No. 48, p. 335 (J. Cooke ed. 1961) (quoting Jefferson).

In the 1975 Term, in the face of a holding by a Court of Appeals that the separation-of-powers challenge was meritless, we unanimously invalidated an attempt by Congress to exercise appointing powers constitutionally vested in the Chief Executive. *Buckley v. Valeo*, 424 U. S., at 109–143.